

26TRCV01106 26TRCV01106

County: los-angeles

Division: Civil Law and Motion

Department: P

Hearing date: 2026-06-24

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Case Number: 26TRCV01106 Hearing Date: June 24, 2026 Dept: P

Demurrer to Plaintiff's Complaint and Motion to Strike

Moving Party: Defendant A&J Plumbing and Rooter and Defendant Business Alliance Insurance Company

Responding Party: None

RULING

The court considered the moving papers. Moving Defendants' Demurrer to Plaintiff's fourth and fifth causes of action is SUSTAINED in its entirety without leave to amend. Moving Defendants' Motion to Strike is GRANTED in its entirety without leave to amend.

PROCEDURAL BACKGROUND

On March 26, 2026, Plaintiff Dale Goodman ("Plaintiff") filed a complaint against Defendants Armando Fernandez Jr., A&J Plumbing and Rooter, The Northe River Insurance Company, Business Alliance Insurance Company, and DOES 1 through 10, inclusive, alleging six causes of action for: (1) Breach of Oral Contract; (2) Breach of Covenant of Good Faith and Fair Dealing; (3) Negligence; (4) Fraud; (5) Unfair Business Practices; and (6) Claim on Contractors Bond.

On May 22, 2026, Defendants A&J Plumbing and Rooter and Business Alliance Insurance Company (collectively, "Moving Defendants") filed the instant demurrer and motion to strike.

FACTUAL BACKGROUND

Plaintiff is an owner and resident of a home located at 3255 Parkhurst Drive in Rancho Palos Verdes, California (the "Property"). (Complaint, ¶ 1.) Plaintiff alleges that the Property had old cast iron pipes which become brittle over time. (Complaint, ¶ 16.) Plaintiff alleges that he contacted Defendants A&J Plumbing and Rooter ("A&J") and Armando Fernandez ("Fernandez"), the owner of A&J, to ask about the feasibility of applying a spray liner to the interior of the pipes. (Complaint, ¶¶ 3, 16.) Plaintiff alleges that on November 11, 2023, Plaintiff, A&J, and Fernandez verbally agreed that A&J and Fernandez would complete the first phase of work on the Property's sewer line, and Plaintiff only received a written invoice for the work rather than a home improvement contract. (Complaint, ¶ 17.) Plaintiff alleges that he paid A&J and Fernandez \$17,000.00 for the first phase of work. (Complaint, ¶ 17.)

Next, Plaintiff alleges that on November 30, 2023, Plaintiff, A&J, and Fernandez verbally agreed that A&J and Fernandez would complete a second phase of work involving the Property's kitchen drain line, and Plaintiff again did not receive a home improvement contract. (Complaint, ¶ 18.) Plaintiff alleges that he paid A&J and Fernandez \$51,075.00 for the second phase of work. (Complaint, ¶ 19.) Plaintiff alleges that on May 22, 2025, Plaintiff, A&J, and Fernandez made a third verbal agreement regarding a third phase of work involving the Property's bathrooms. (Complaint, ¶ 20.) Plaintiff alleges that he again received an invoice rather than a home improvement contract, and paid A&J and Fernandez \$32,000.00 for the third phase of work. Complaint, ¶ 20.)

Plaintiff alleges that the work by A&J and Fernandez was "entirely defective," requiring Plaintiff to hire another contractor to correct the work. (Complaint, ¶ 21.) Plaintiff alleges that he began experiencing frequent back-ups in the kitchen sink and in the bathrooms, and that A&J and Fernandez attempted to repair the issue only for it to occur again. (Complaint, ¶ 22.) Plaintiff alleges that he sent a complaint to the Contractors State License Board ("CSLB") regarding the defective work by A&J and Fernandez, after which CSLB determined that A&J and Fernandez had violated one or more sections of the California Business and Professions Code. (Complaint, ¶ 29.)

LEGAL STANDARD

A party may demur to a complaint on the grounds that it "does not state facts sufficient to constitute a cause of action." (Code Civ. Proc. Section 430.10(e).) A party may also demur to a pleading on the grounds that the pleading is uncertain. (Code Civ. Proc. Section 430.10(f).) A demurrer tests whether the complaint states a cause of action. (Hahn v. Mirda (2007) 147 Cal.App.4th 740, 747.) A special demurrer for uncertainty under Code of Civil Procedure section 430.10(f) is disfavored and will only be sustained where the pleading is so bad that defendant or plaintiff cannot reasonably respond—i.e., cannot reasonably determine what issues must be admitted or denied, or what counts or claims are directed against him or her. (Khouri v. Maly's of Calif., Inc. (1993) 14 Cal.App.4th 612, 616.)

When considering demurrers, courts accept all well pleaded facts as true. (Fox v. JAMDAT Mobile, Inc. (2010) 185 Cal.App.4th 1068, 1078.) "A demurrer tests the pleadings alone and not the evidence or other extrinsic matters. Therefore, it lies only where the defects appear on the face of the pleading or are judicially noticed." (SKF Farms v. Superior Court (1984) 153 Cal.App.3d 902, 905.) "The only issue involved in a demurrer hearing is whether the complaint, as it stands, unconnected with extraneous matters, states a cause of action." (Hahn, supra, 147 Cal.App.4th at 747.) On demurrer, a court does "not accept contentions, deductions or conclusions of fact or law." (Simonyan v. Nationwide Insurance Company of America (2022) 78 Cal.App.5th 889, 895.)

Although courts construe pleadings liberally, sufficient facts must be alleged to support the allegations pled to survive a demurrer. (Rakestraw v. California Physicians' Serv. (2000) 81 Cal.App.4th 39, 43.) Where a demurrer is sustained, leave to amend must be allowed where there is a reasonable possibility of successful amendment. (Goodman v. Kennedy (1976) 18 Cal.3d 335, 349.) The burden is on the party who filed the pleading subject to demurrer to show the court that a pleading can be amended successfully. (Ibid.)

DISCUSSION

Moving Party's Argument

Moving Defendants demur to the fourth and fifth causes of action in Plaintiff's complaint. Moving Defendants argue that Plaintiff fails to plead the circumstances of the alleged fraud with the requisite specificity, instead vaguely alleging that representations were made by Fernandez "on multiple occasions." Moving Defendants argue that Plaintiff does not allege that A&J or Fernandez made representations of past or existing fact, but only non-actionable opinions or promises regarding future performance. Moving Defendants further argue that Plaintiff has not sufficiently alleged justifiable reliance. Next, Moving Defendants argue that Plaintiff's fifth cause of action fails because it seeks damages which are unrecoverable under the UCL.

Moving Defendants move to strike Plaintiff's request for "actual damages," and all forms of monetary damages alleged within Plaintiff's fifth cause of action and Plaintiff's request for punitive damages. Moving Defendant argues that at most, the complaint alleges a disagreement regarding the quality of work done at the Property and fails to allege despicable conduct by Moving Defendants.

Merits of the Motion

Meet and Confer Requirements

Before filing a demurrer, the demurring party is required to meet and confer "in person, by telephone, or by video conference with the party who filed the pleading that is subject to the demurrer for the purposes of determining whether an agreement can be reached through a filing of an amended pleading that would resolve the objections to be raised in the demurrer." (Code Civ. Proc. Section 430.41(a).)

Here, counsel for Moving Defendants declares that on May 18, 2026, he "conferred with [Plaintiff's] counsel discussing [Moving Defendants'] position in a meet and confer letter outlining the allegations," and "have not been able to resolve this issue." (Torsney Decl., ¶ 2.) Because the parties have not met and conferred in person, by telephone, or by video conference, the court finds that the meet and confer requirements have not been satisfied. However, the court will still discuss the merits of Moving Defendant's instant demurrer because a failure to comply with the meet and confer requirements alone does not defeat a demurrer. (Code Civ. Proc. Section 430.41(a)(4).)

Fourth Cause of Action: Fraud

"The elements of fraud are (a) a misrepresentation (false representation, concealment, or nondisclosure); (b) scienter or knowledge of its falsity; (c) intent to induce reliance; (d) justifiable reliance; and (e) resulting damage." (Hinesley v. Oakshade Town Ctr. (2005) 135 Cal.App.4th 289, 294.) The facts constituting the alleged fraud must be alleged factually and specifically as to every element of fraud, as the policy of "liberal construction" of the pleadings will not ordinarily be invoked. (Lazar v. Superior Court (1996) 12 Cal.4th 631, 645.) To properly allege fraud against a corporation, the plaintiffs must plead the names of the persons allegedly making the false representations, their authority to speak, to whom they spoke, what they said or wrote, and when it was said or written. (Tarmann v. State Farm Mut. Auto. Ins. Co. (1991) 2 Cal.App.4th 153, 157.)

Moving Defendants argue that Plaintiff's complaint fails to allege circumstances of the alleged fraud with sufficient specificity and instead contains conclusory allegations.

The court notes that Plaintiff's fourth cause of action is only alleged against the "Contractor Defendants," defined by Plaintiff as A&J and Fernandez. (Complaint, ¶ 4.) Plaintiff alleges that Fernandez, the "principal, owner, and sole proprietor" of A&J, "verbally represented to Plaintiff and Plaintiff's wife, Elaine Goodman on multiple occasions that [A&J and Fernandez] were qualified to competently install the liners into the sewer lines of the Property and correct the issues that Plaintiff was having with his plumbing," and that A&J and Fernandez "guaranteed" their work and offered a warranty to correct any defective work without additional charge. (Complaint, ¶¶ 3, 51-52.) Plaintiff also alleges that A&J and Fernandez "concealed their intention to charge Plaintiff more than double the reasonable value of the work" by failing to provide Plaintiff with a written contract and further concealed their defective work by failing to check the quality of the work. (Complaint, ¶¶ 53-54.)

The court notes that Plaintiff alleged that A&J and Fernandez "offered to come out and fix the work under their 15-year warranty on pipe coating," but Plaintiff declined the offer. (Complaint, ¶ 32.) This contradicts Plaintiff's allegation that A&J and Fernandez falsely represented that they offered a warranty to correct any defective work and thus cannot be a basis for Plaintiff's fraud cause of action. Next, the court finds that Plaintiff has failed to allege specific facts showing that Fernandez knew that A&J was not qualified to competently perform the work at the Property and correct any issues at the time that Fernandez made those representations to Plaintiff. The court next turns to Plaintiff's allegation that A&J and Fernandez "concealed their intention to charge Plaintiff more than double the reasonable value of the work by... failing to provide Plaintiff with a written contract that includes, among other things, the total contract price." (Complaint, ¶ 53.)

“The required elements for fraudulent concealment are (1) concealment or suppression of a material fact; (2) by a defendant with a duty to disclose the fact; (3) the defendant intended to defraud the plaintiff by intentionally concealing or suppressing the fact; (4) the plaintiff was unaware of the fact and would have acted differently if the concealed or suppressed fact was known; and (5) plaintiff sustained damage as a result of the concealment or suppression of the material fact.” (Rattagan v. Uber Technologies, Inc. (2024) 17 Cal.5th 1, 40.) “A duty to disclose a material fact can arise if... (3) the material facts are known or accessible only to defendant, and defendant knows those facts are not known or reasonably discoverable by plaintiff (i.e., exclusive knowledge)...” (Ibid.)

Regarding the duty element, the court finds that Plaintiff has not sufficiently alleged that either the reasonable value of the services to be rendered by A&J or the total amount to be charged by A&J was not reasonably discoverable to Plaintiff prior to the commencement of the work. Plaintiff has not alleged that he made any attempt to request an estimate for the work to be completed during the first and third phases, such that it is not clear to the court that the total price to be charged by A&J could not have been reasonably discovered by Plaintiff before the work commenced simply by asking A&J for a total price estimate while the parties were discussing the work to be performed. Plaintiff alleges that he discovered the reasonable value of A&J's work after hiring a second plumbing company to repair the defective work performed by A&J, which indicates that Plaintiff could have sought out other plumbing companies to discover the reasonable value of the work to be performed by A&J. Therefore, the court finds that Plaintiff's allegation regarding A&J's intention to overcharge Plaintiff cannot be a basis for Plaintiff's fraud cause of action.

Regarding Plaintiff's allegation that A&J intentionally concealed its defective work by failing to check the quality of its work by running a camera down the pipes, the court also concludes that this allegation cannot serve as a basis for Plaintiff's fraud cause of action. (Complaint, ¶ 54.) Plaintiff alleges that if A&J had run a camera down to confirm the quality of its work, “Plaintiff would have required that [A&J and Fernandez] correct the defective work.” (Complaint, ¶ 54.) Plaintiff has not alleged any damage resulting from A&J's alleged failure to check the quality of its work. Instead, Plaintiff alleges that A&J later offered to correct its defective work, but Plaintiff declined. (Complaint, ¶ 32.)

Therefore, the court finds that the allegations of Plaintiff's fourth cause of action are insufficient to state a cause of action for fraud.

Accordingly, Moving Defendants' Demurrer to Plaintiff's fourth cause of action is SUSTAINED.

Fifth Cause of Action: Unfair Business Practices

To set forth a claim for a violation of Business and Professions Code Section 17200 (“UCL”), Plaintiff must establish Defendant was engaged in an “unlawful, unfair or fraudulent business act or practice and unfair, deceptive, untrue or misleading advertising” and certain specific acts. (Bus. & Prof. Code Section 17200.) A cause of action for unfair competition “is not an all-purpose substitute for a tort or contract action.” (Cortez v. Purolator Air Filtration Products Co. (2000) 23 Cal.4th 163, 173.)

Here, Moving Defendants argue that Plaintiff's fifth cause of action fails because Plaintiff seeks monetary damages which are not recoverable under the UCL. Again, the court notes that Plaintiff's fifth cause of action is only alleged against A&J and Fernandez. Here, Plaintiff alleges that as a result of A&J's and Fernandez's “unfair business practices, Plaintiff has suffered actual damages in an amount to be determined according to proof at the time of trial, but not less than \$116,815.” (Complaint, ¶ 64.)

As Moving Defendants correctly note, “[a] UCL action is equitable in nature; damages cannot be recovered.” (Korea Supply Co. v. Lockheed Martin Corp. (2003) 29 Cal.4th 1134, 1144.) Therefore, Plaintiff's request for damages is improper, and Plaintiff fails to otherwise allege entitlement to equitable relief within the fifth cause of action itself, aside from including a prayer for an “injunction prohibiting [A&J and Fernandez] from engaging in the acts and omissions alleged in the cause of action.” (Complaint, Prayer 3.) The court also notes that Plaintiff's allegation that A&J and Fernandez “engaged in a scheme to defraud” Plaintiff and other consumers is conclusory and based on the allegations of Plaintiff's fourth cause of action,

which the court has found to be insufficient. (Complaint, ¶ 62.)

Accordingly, Moving Defendants' Demurrer to Plaintiff's fifth cause of action is SUSTAINED.

Motion to Strike

The court may, upon motion, or at any time in its discretion, and upon terms it deems proper, strike any irrelevant, false, or improper matter inserted in any pleading. (Code Civ. Proc. Section 436(a).) The court may also strike all or any part of any pleading not drawn or filed in conformity with the laws of this state, a court rule, or an order of the court. (Code Civ. Proc. Section 436(b).) The grounds for a motion to strike are that the pleading has irrelevant, false, or improper matter, or has not been drawn or filed in conformity with laws. (Code Civ. Proc. Section 436.) The grounds for moving to strike must appear on the face of the pleading or by way of judicial notice. (Code Civ. Proc. Section 437(a).)

Here, Moving Defendants move to strike Plaintiff's request for monetary damages in his fifth cause of action and Plaintiff's prayer for punitive damages and supporting allegation in paragraph 60 of the complaint.

The court has concluded that Plaintiff's request for monetary damages within his fifth cause of action is improper and refers to its previous discussion. Additionally, the court has concluded that Plaintiff has failed to state a cause of action for fraud, such that Plaintiff has not alleged any conduct by A&J justifying an award of punitive damages.

Accordingly, Moving Defendants' Motion to Strike is GRANTED in its entirety.

Leave to Amend

Leave to amend must be allowed where there is a reasonable possibility of successful amendment. (Vaccaro v. Kaiman (1998) 63 Cal.App.4th 761, 768 ("When the defect which justifies striking a complaint is capable of cure, the court should allow leave to amend.")) The burden is on the complainant to show the Court that a pleading can be amended successfully. (Blank v. Kirwan (1985) 39 Cal.3d 311, 318.)

As Plaintiff has not opposed the demurrer or motion to strike as to these causes of action but has the burden to show that the pleading can be amended, the court finds that no successful amendment can be made.

CONCLUSION

Based on the foregoing, Moving Defendants' Demurrer to Plaintiff's fourth and fifth causes of action is SUSTAINED in its entirety without leave to amend. Moving Defendants' Motion to Strike is GRANTED in its entirety without leave to amend.

Moving party is ordered to give notice of ruling.